

25CV04513 Matthew Payman Ebnesahidi vs Regents of the University of California

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-27

Motion: 1. CMC; 2. Demurrer

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Case Number

25CV04513

Case Type

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Hearing Date / Time

Mon, 07/27/2026 - 10:00

Nature of Proceedings

1. CMC; 2. Demurrer

Tentative Ruling

Matthew Payman Ebnesahidi v. Regents of The University of California

Case No. 25CV04513

Hearing Date: July 27, 2026

HEARINGS: Defendant's Demurrer to Plaintiff's Third Amended Complaint

ATTORNEYS: For Plaintiff Matthew Payman Ebnesahidi: F. Javier Trujillo, Andrew Echavarria

For Defendant The Regents of The University of California: Jonathan D. Miller, Jennifer M. Miller, Nye Stirling Hale Miller & Sweet LLP

TENTATIVE RULINGS: Defendant's demurrer to plaintiff's third amended complaint is overruled. Defendant shall file and serve its answer to the third amended complaint no later than August 10, 2026.

Background:

This action commenced on July 21, 2025, by the filing of the original complaint by plaintiff Matthew Payman Ebnesahidi ("plaintiff") against defendant The Regents of The University of California (the "Regents") for "Personal Injuries."

Regents filed a demur to the original complaint on August 25, 2025. Prior to the hearing on the demurrer, on September 12, 2025, plaintiff filed his first amended complaint ("FAC") against Regents for "Personal Injuries Pursuant to Government Code sections 811.2; 815.2."

Regents demurred to the FAC, and on February 2, 2026, the demurrer was sustained with leave to amend. Plaintiff was ordered to file a second amended complaint no later than February 23, 2026.

Rather than filing a second amended complaint, on February 18, 2026, plaintiff filed the operative third amended complaint ("TAC"), for "Personal Injuries Pursuant to Government Code sections 835 and 815.2."

As alleged in the TAC:

At all relevant times, plaintiff was a student at the University of California Santa Barbara ("UCSB"). (TAC, ¶ 1.)

"Since 1925 the REGENTS has been taking open-undeveloped land and improving it with buildings and roads to accommodate the educational needs of the University of California at Santa Barbara campus. It is not an open natural and recreation area. The REGENTS did not open the campus to the public for recreating. The REGENTS constructed the bicycle PATHS in furtherance of its academic goals and to reduce 'greenhouse gas' production from vehicular travel on campus." (TAC, ¶ 3.)

"The paved bicycle path that the plaintiff was riding was designated by the REGENTS as a Campus 'Primary Bike Path.' The campus police issue citations if the bicycle PATH rules are violated. No UCSB bicycle PATH is built on unimproved land and does not provide access to any unimproved recreational property. On this primary bike PATH, the REGENTS prohibited all fishing, hunting, camping, and riding of animals. The REGENTS also prohibits all use by pedestrians and vehicles. None of the UCSB bicycle paths extend beyond the campus. All PATHS terminate totally within the campus before reaching the property's perimeter or at the perimeter on to public streets; highways not owned by the REGENTS. The bicycle PATHs do not provide access to any unimproved recreational land." (TAC, ¶ 4.)

On June 24, 2024, plaintiff was riding his bicycle on the primary bike path to get to class and because of dangerous conditions on the bike path, plaintiff lost control of his bicycle, causing him to crash and sustain injuries. (TAC, ¶¶ 10, 14.)

Regents now demurs to the TAC on the grounds that the only cause of action fails to allege facts sufficient to state a cause of action. Specifically, Regents argues that it is immune from liability for plaintiff's injuries pursuant to Government Code section 831.4, subdivision (b).

Plaintiff opposes the demurrer.

Analysis:

Request for Judicial Notice

The Regents request that the court take judicial notice of: (1) The Regents' approved main campus bike path map, (2) The California Department of Fish and Wildlife's official page for the Campus Point State Marine Conservation Area, and (3) The UCSB associated students' campus beaches guide.

Judicial notice may be taken of: "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States" (Evid. Code, § 452, subd. (c).) and "Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subd. (h).)

"The trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and:

"(a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and

"(b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453.)

"[J]udicial notice of a document does not extend to the truthfulness of its contents or the interpretation of statements contained therein, if those matters are reasonably disputable. [Citations.] Our Supreme Court noted this limitation in *StorMedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 84 Cal.Rptr.2d 843, 976 P.2d 214 (*StorMedia*), explaining: " 'In ruling on a demurrer, a court may consider facts of which it has taken judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.] . . . ' " [Citation.]" (*Apple Inc. v. Superior Court* (2017) 18 Cal.App.5th 222, 241.)

"The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 114 (*Fremont*).)

" 'Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents.' " [Citation.]" (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

The court will take judicial notice of the documents. However, they are of little value to ruling on the demurrer. The proper interpretation of all three Exhibits is, without more, disputable.

Objections

The Regents objects to the declaration of plaintiff's counsel and the Exhibits attached thereto. The objections are sustained. There was no request for judicial notice of the documents, plaintiff's counsel has not established personal knowledge of what is contained in the Exhibits, and the Exhibits are hearsay.

Demurrer

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

"(a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"(b) The person who filed the pleading does not have the legal capacity to sue.

"(c) There is another action pending between the same parties on the same cause of action.

"(d) There is a defect or misjoinder of parties.

"(e) The pleading does not state facts sufficient to constitute a cause of action.

"(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.

"(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

"(h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.)

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30, subd. (a).)

"[A] court must treat a demurrer as admitting all material facts properly pleaded, it does not, however, assume the truth of contentions, deductions or conclusions of law." (Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co. (2021) 70 Cal.App.5th 341, 358, citing Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Regents are a public entity. " "Public entity" ' includes the state, the Regents of the University of California, the Trustees of the California State University and the California State University, a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State." (Gov. Code, § 811.2.)

With respect to a public entity, and their employees, there are specific pleading requirements. A public entity has no liability for any injury to any person except as provided by statute. (Gov. Code, § 815; Tuthill v. City of San Buenaventura (2014) 223 Cal.App.4th 1081, 1089.) Claims based upon statutory liability cannot be generally alleged, but must be particularly pled to allege facts demonstrating the right to recover under the statute. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.)

"[I]n California all government tort liability is dependent on the existence of an authorizing statute or " 'enactment' " [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citation.] Duty cannot be alleged simply by stating " 'defendant had a duty under the law' "; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be

alleged. [Citations.] Since the duty of a governmental agency can only be created by statute or “ ‘enactment,’ ” the statute or “ ‘enactment’ ” claimed to establish the duty must at the very least be identified.” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.)

The statutory authorization, under which plaintiff brings the FAC, is Government Code section 815.2. The code section reads:

“(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

“(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.”

As it did with respect to its first demurrer, Regents argues that it is immune from liability for plaintiff’s injuries pursuant to Government Code section 831.4, subdivision (b). Government Code section 831.4 provides, in its entirety:

“A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of:

“(a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.

“(b) Any trail used for the above purposes.

“(c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads.”

“Subdivision (a) [of Government Code section 831.4] speaks of unpaved roads, while subdivision (c) refers to paved trails. It is therefore logical to interpret subdivision (b)’s reference to “ ‘any trail’ ” to mean just that, i.e., any trail, whether paved or unpaved.” (Carroll, supra, 60 Cal.App.4th at p. 609.)

“The words of a statute are to be accorded their usual, ordinary import. Moreover, they are to be construed in context, keeping in mind the nature and purpose of the statute in which they appear, and the various parts of a statute are to be harmonized by considering the particular clause or section in the context of the statutory framework as a whole. [Citation.] Unlike subdivision (a) of section 831.4, which refers specifically to “ ‘unpaved’ ” roads, and subdivision (c), which refers specifically to “ ‘paved’ ” trails, paths, etc., subdivision (b) refers to “ ‘[a]ny’ ” trail. The logical inference of the all-encompassing “ ‘any’ ” in subdivision (b), particularly in relationship to the limiting adjectives in its sister subdivisions, is that the nature of the trail’s surface is irrelevant to questions of immunity.” (Armenio v. County of San Mateo (1994) 28 Cal.App.4th 413, 418.)

“ ‘ ‘ ‘The plainly stated purpose of immunity for recreational activities on public land is to encourage public entities to open their property for public recreational use, because ‘ ‘the burden and expense of putting such property in a safe condition and the expense of defending claims for injuries would probably cause many public entities to close such areas to public use.’ ’ ’ ’ ” [Citation.] “ ‘Trail immunity applies to all manner of defects in the trail’s condition.’ ” [Citation.]” (Helm v. City of Los Angeles

(2024) 101 Cal.App.5th 1219, 1226.)

According to the allegations of the TAC, which must be considered true in ruling on a demurrer:

“No UCSB bicycle PATH is built on unimproved land and does not provide access to any unimproved recreational property. On this primary bike PATH, the REGENTS prohibited all fishing, hunting, camping, and riding of animals. The REGENTS also prohibits all use by pedestrians and vehicles. None of the UCSB bicycle paths extend beyond the campus. All PATHS terminate totally within the campus before reaching the property’s perimeter or at the perimeter onto public streets; highways not owned by the REGENTS. The bicycle PATHs do not provide access to any unimproved recreational land.” (TAC, ¶ 4.)

The Regents argues that the judicially noticeable facts contradict plaintiff’s allegations and show that the path does provide access to recreational and scenic areas, thus making it immune under Government Code section 831.4, subdivision (b).

The demurrer cannot be sustained. As noted above, on demurrer, the court may only consider the allegations of the TAC and matters which may be judicially noticed. The allegations of the TAC take the trail outside of the immunity provided by section 831.4. The bike path map, and other documents of which the court has taken judicial notice, do seem to show that the path does provide access to recreational and scenic areas. However, to affirmatively establish that that is the proper interpretation of the documents would require testimony, or other admissible evidence, which would not be proper to consider at the pleading stage.

While the court is not persuaded by plaintiff’s other arguments in opposition, the court need not address those arguments because the demurrer is being overruled for the above reason.

Judges

Judge Colleen Sterne

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